

Opinion of GINSBURG, J.

the Court’s judgment reversing the judgment of the Court of Appeals for the District of Columbia. But I disagree with the majority’s decision to reach the merits of the probable-cause question, which it does apparently only to ensure that, in addition to respondents’ 42 U.S.C. § 1983 claims, the Court’s decision will resolve respondents’ state-law claims of false arrest and negligent supervision. See *ante*, at 62, n. 7. It is possible that our qualified-immunity decision alone will resolve those claims. See Reply Brief 20, n. 7. In light of the lack of a dispute on an important legal question and the heavily factbound nature of the probable-cause determination here, I do not think that the Court should have reached that issue. The lower courts are well equipped to handle the remaining state-law claims in the first instance.

JUSTICE GINSBURG, concurring in the judgment in part.

This case, well described in the opinion of the Court of Appeals,* leads me to question whether this Court, in assessing probable cause, should continue to ignore why police in fact acted. See *ante*, at 54, n. 2. No arrests of plaintiffs-respondents were made until Sergeant Suber so instructed. His instruction, when conveyed to the officers he superintended, was based on an error of law. Sergeant Suber believed that the absence of the premises owner’s consent, an uncontested fact in this case, sufficed to justify arrest of the partygoers for unlawful entry. See App. 60 (Suber deposition) (officers had probable cause to arrest because “Peaches did not have the right, nor did the [partygoers] have the right[,] to be inside that location”). An essential element of unlawful entry in the District of Columbia is that the defendant “knew or should have known that his entry was unwanted.” *Ortberg v. United States*, 81 A. 3d 303, 308 (D. C.

*The Court’s account of the undisputed facts goes beyond those recited by the Court of Appeals. Compare *ante*, at 51–53, with 765 F. 3d 13, 17–18 (CA DC 2014).